

STATE OF NEW YORK

6561--B

Cal. No. 165

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. WEPRIN, MEEKS, JACOBSON, SANTABARBARA, OTIS -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the insurance law, in relation to including image-guided biopsies under certain insurance coverage for breast cancer screening

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Item (iv) of subparagraph (A) of paragraph 11 of subsection (i) of section 3216 of the insurance law, as amended by chapter 424 of the laws of 2024, is amended to read as follows:

(iv) upon the recommendation of a physician, screening and diagnostic imaging, including diagnostic mammograms, breast ultrasounds, image-guided breast biopsies, or magnetic resonance imaging, recommended by nationally recognized clinical practice guidelines for the detection of breast cancer. For the purposes of this item, "nationally recognized clinical practice guidelines" means evidence-based clinical practice guidelines informed by a systematic review of evidence and an assessment of the benefits, and risks of alternative care options intended to optimize patient care developed by independent organizations or medical professional societies utilizing a transparent methodology and reporting structure and with a conflict of interest policy.

§ 2. Item (v) of subparagraph (A) of paragraph 11 of subsection (l) of section 3221 of the insurance law, as amended by chapter 424 of the laws of 2024, is amended to read as follows:

(v) upon the recommendation of a physician, screening and diagnostic imaging, including diagnostic mammograms, breast ultrasounds, image-guided breast biopsies, or magnetic resonance imaging, recommended by nationally recognized clinical practice guidelines for the detection of breast cancer. For the purposes of this item, "nationally recognized

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD10190-05-6

1 clinical practice guidelines" means evidence-based clinical practice
2 guidelines informed by a systematic review of evidence and an assessment
3 of the benefits, and risks of alternative care options intended to opti-
4 mize patient care developed by independent organizations or medical
5 professional societies utilizing a transparent methodology and reporting
6 structure and with a conflict of interest policy.

7 § 3. Subparagraph (E) of paragraph 1 of subsection (p) of section 4303
8 of the insurance law, as amended by chapter 424 of the laws of 2024, is
9 amended to read as follows:

10 (E) upon the recommendation of a physician, screening and diagnostic
11 imaging, including diagnostic mammograms, breast ultrasounds, image-
12 guided breast biopsies, or magnetic resonance imaging, recommended by
13 nationally recognized clinical practice guidelines for the detection of
14 breast cancer. For the purposes of this subparagraph, "nationally recog-
15 nized clinical practice guidelines" means evidence-based clinical prac-
16 tice guidelines informed by a systematic review of evidence and an
17 assessment of the benefits, and risks of alternative care options
18 intended to optimize patient care developed by independent organizations
19 or medical professional societies utilizing a transparent methodology
20 and reporting structure and with a conflict of interest policy; and

21 § 4. This act shall take effect January 1, 2027 and shall apply to all
22 policies and contracts issued, renewed, modified, altered or amended on
23 or after such date.